

26NNCV03173 26NNCV03173

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Case Number: 26NNCV03173 Hearing Date: July 31, 2026 Dept: A

TENTATIVE RULING

JULY 31, 2026

MOTION TO COMPEL ARBITRATION AND APPOINT ARBITRATOR

Los

Angeles Superior Court Case # 26NNCV03173

MP: Plaintiff/Petitioner

Nadeza Mikhaylova

RP: Defendant/Respondent

United Financial Casualty Company

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

On April 23, 2026,

Nadeza Mikhaylova ("Plaintiff") filed a Complaint against United Financial Casualty Company, Allstate Insurance Company, and Does 1-20 ("Defendants") for:

(1) Motor Vehicle Negligence; and (2) General Negligence. On December 25, 2021, Plaintiff was involved in a motor vehicle collision with Defendants, such that she suffered personal injuries.

On April 30, 2026,

Plaintiff amended the Complaint, naming North Light Specialty Insurance Company as Doe 1.

MOTION ON CALENDAR:

On May 19, 2026, Plaintiff

filed a Motion to Compel Arbitration and Appoint an Arbitrator. On July 17, 2026, United Financial Casualty Company ("UFCC") filed

an opposition. As of July 29, 2026 no reply was received.

The Court notes that on April 30, 2026, Plaintiff filed a

Petition to Compel Arbitration and Appoint an Arbitrator (reservation no.

809545439696), set for August 21, 2026, regarding "Petitioner BEHNAZ GHAFARI

MANJILI" against "UNITED STATES FIRE INSURANCE COMPANY" with a Declaration Page

naming Nadeza Mikhaylova. The Court

notes that there is neither a Plaintiff named Behnaz Ghaffari Manjili nor a

Defendant named United States Fire Insurance Company in this action. The Court inquires whether this motion was mistakenly filed and, if so, advises Plaintiff to take that motion off-calendar.

LEGAL STANDARD:

"The statutory requirement for

arbitration of uninsured motorist claims is found in [Insurance Code]

subdivision (f) of section 11580.2, which states: 'The policy or an endorsement

added thereto shall provide that the determination as to whether the insured

shall be legally entitled to recover damages, and if so entitled, the amount

thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration. ...' [¶] Cases which have analyzed and construed this section have pointed out that the word 'damages' in this section means the damages which the insured is entitled to recover from the uninsured motorist, and that the statute, read literally, requires arbitration of two issues only: (1) whether the insured is entitled to recover against the uninsured motorist and (2) if so, the amount of the damages."

(Freeman v. State Farm Mut. Auto. Ins. Co. (1975) 14

Cal.3d 473, 480.) Pursuant to section

11580.2(f): (1)

arbitration of issues other than liability and damages is appropriate if the parties have contractually agreed to arbitrate more than is required by section 11580.2(f); and, (2) only issues of liability and damages may be decided in an arbitral forum if the parties did not agree to arbitrate more than is required by section 11580.2(f). (Bouton v. USAA Casualty Ins. Co. (2008) 43 Cal.4th 1190, 1197.)

"Questions of

coverage—that is, whether the claimant is insured and therefore entitled to take advantage of the protection provided by the policy at issue—must be resolved before an arbitrator reaches the two arbitrable questions pursuant to section 11580.2, subdivision (f). Here, the policy acknowledges as much, providing that 'arbitration ... shall not address any other issues, including but not limited to, coverage questions.' Coverage questions fall outside of the two issues necessarily arbitrable under section 11580.2, subdivision (f), and must therefore be decided by a court, not an arbitrator, if the parties have not agreed to arbitrate more than the statute requires." (Bouton v. USAA Casualty Ins. Co. (2008) 43 Cal.4th 1190, 1201.)

ANALYSIS:

Plaintiff moves to

compel arbitration against UFCC pursuant to Insurance Code, § 11580.2(f). At the time of the collision, Plaintiff claims she was a Lyft passenger. She argues that she requested coverage from UFCC and attempted to resolve the matter, but her request for coverage and demand for arbitration were denied. The Court notes that Plaintiff did not accompany the motion with a declaration supporting these assertions.

Plaintiff provides a

copy of the Progressive Declarations Page, indicating that the underwriting company is UFCC and listing Plaintiff as a driver/insured. (Mot., Ex. A.) The policy includes Uninsured/Underinsured

Motorist coverage for \$25,000 each person/\$50,000 each accident. (Id.)

Petitioner provides

the following proposed arbitrators: (1) Hon. Richard Stone, Ret.; (2) Leonard

S. Levy, Esq.; (3) Darrel Forgey, Esq.; and (4) Hon. Linda Marks, Ret. (Mot. at p.2.) However, no declaration is attached to the

motion and no information provided regarding these proposed arbitrators, including experience with UM/UIM matters, their hourly rates, etc.

In order to reach the

arbitration step, the issue of coverage must first be determined, as this is not an arbitrable matter unless expressly agreed by the parties. UFCC argues that because coverage was already denied, the denial creates a threshold coverage dispute which must first be resolved judicially before arbitrating whether she is entitled to recover against the uninsured motorist and the damages amount.

Plaintiff has not met

this burden. As noted above, Plaintiff did not provide a declaration and documents supporting her assertions regarding the underlying motor vehicle collision, that she was a Lyft passenger, or that she requested coverage from UFCC and was denied. (UFCC also does not provide any exhibits with the opposition but appears to concede that Plaintiff's coverage request was denied.)

Next, the Complaint's

allegations are somewhat confusing in light of Plaintiff's assertions in this motion. In the First Cause of Action for Motor Vehicle Negligence, Plaintiff alleges that UFCC and Allstate operated and owned the motor vehicle and that UFCC and Allstate were the agents and employees acting within the scope of their agency of other defendants. (Compl. at p.4.) In the Second Cause of Action for General

Negligence, Plaintiff alleges Defendants negligently owned, maintained, controlled, and/or operated the vehicle by causing their vehicle to recklessly strike Plaintiff's vehicle. (Id.

at p.5.) However, Plaintiff discloses

for the first time in this motion that she was a Lyft passenger and she sought UM/UIM coverage from her insurance carrier UFCC. Thus, as opposed to tort claims as alleged in the Complaint, it appears that Plaintiff seeks to compel arbitration against UFCC for insurance claims. These are distinct claims and should be clarified as Insurance Code, § 11580.2 may not apply to

the former type of direct tort claims against UFCC (under the theory that it drove and negligently caused a motor vehicle collision), as opposed to claims of a bad faith denial of a UM/UIM insurance claim. Plaintiff has not shown that her tort claims are subject to arbitration. As such, based on the motion papers, she has not established the issue of coverage based on contract/policy terms.

The motion to compel arbitration is denied without prejudice.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff Nadeza Mikhaylova's Motion to Compel Arbitration and Appoint an Arbitrator came on regularly for hearing on July 31, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE
MOTION TO COMPEL ARBITRATION AND APPOINT AN ARBITRATOR IS DENIED WITHOUT
PREJUDICE.

DEFENDANT
UFCC TO
GIVE NOTICE.

IT IS SO ORDERED.